

Court No. - 39

Case :- WRIT - C No. - 11951 of 2018

Petitioner :- Renu

Respondent :- State Of U.P. And 03 Others

Counsel for Petitioner :- Vinod Kumar Srivastava, Usha Srivastava

Counsel for Respondent :- C.S.C., Chandan Agarwal, Ramendra Pratap Singh

Hon'ble Dilip Gupta, J.

Hon'ble Neeraj Tiwari, J.

In regard to a disconnection notice dated 6 November 2017 sent by the Department to the petitioner regarding the payment of Rs. 2,95,618/-, the petitioner had earlier filed Writ-C No.54746 of 2017 which was disposed of on 17 November 2017 with the following directions:-

"The electric connection of the petitioner has been disconnected on account of non-payment of the electricity bills.

It is pointed out by the learned counsel for the petitioner that she has regularly paid the electricity bills but still the electricity connection was disconnected. Learned counsel for the petitioner also states that though the petitioner has moved an application for correction of the bill but she is ready to deposit some amount so that the electricity connection can be restored.

Sri Mahboob Ahmad, learned counsel appearing for the Corporation states that the petitioner can invoke the provisions of Clause 6.5 of the Electricity Supply Code, 2005 for correction of the bill.

This petition is, accordingly, disposed of by giving liberty to the petitioner to invoke the provisions of Clause 6.5 of the Code for rectification of the bill.

If the petitioner deposits an amount of Rs. 50,000/ (fifty thousand) within a period of ten days from today, the electricity connection shall be restored. The payment of the balance amount shall depend upon the bill that would be corrected in the proceedings initiated by the petitioner."

The petitioner contends that she deposited an amount of Rs. 50,000/- but with the communication dated 5 March 2018, the Department has enclosed the Bill dated 5 March 2018 generated at 06:21:18 PM requiring the petitioner to deposit an amount of

Rs.3,12,242/-.

It is stated by the learned counsel for the petitioner that the Department has not informed the basis on which the amount was calculated.

Sri Chandan Agarwal, learned counsel appearing for the respondents states that the Department shall inform the petitioner and shall provide details of Bill to the petitioner within 10 days from today.

The petition is, accordingly, disposed of with a direction to the respondents to provide to the petitioner the details of the amount raised in the Bill on 5 March 2018.

Order Date :- 2.4.2018

Junaid

(Dilip Gupta,J.)

(Neeraj Tiwari,J.)